

Mohd Kasib v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · Writ-C No. 17901 of 2022 · **Writ disposed; petitioner relegated to para 6.8 objection with stay of coercive recovery.**

HEADNOTE

Where the distribution licensee stated that an objection to a tehsildar electricity demand could be decided in a time-bound manner, the Allahabad High Court disposed of the writ without examining merits, granting liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within four weeks, and staying coercive action for eight weeks or until that disposal, whichever was earlier.

FACTUAL SUMMARY

Mohd Kasib invoked the Allahabad High Court's writ jurisdiction seeking certiorari to quash a demand notice dated 13 August 2021 issued by the Tehsildar, Moradabad, for Rs 1,40,482. Counsel for the Power Distribution Corporation (respondents 2 and 3) stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a fixed period. The Court recorded that statement and did not try the merits of the demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment or demand

HOLDING

Without expressing any opinion on merits, a consumer challenging a tehsildar demand for electricity dues may be relegated to an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after hearing within a fixed time, with coercive recovery stayed for a short window pending that disposal. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed a para 6.8 objection to be decided after hearing within four weeks and stayed coercive action on the demand for eight weeks or until disposal, whichever earlier. ¶ 4-5

assessment-6.8-alternate-remedy The writ was disposed of without a merits decision, giving liberty to object under para 6.8 as the Code forum for the demand. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 13 AUGUST 2021

The Court expressly declined to express any opinion on the merits. ¶ 4